

Terms and Conditions

These Terms and Conditions govern access to and use of the Kindred Asterling AI Coaching service.

VERSION 1.0	DATE August 24, 2026
GOVERNING LAW Province of Alberta & Federal Laws of Canada	SOLE PROPRIETOR Landon Syroid d/b/a Kindred Asterling AI Coaching
STATUS Published	

1. Agreement to Terms & Eligibility

These Terms and Conditions ("Terms") constitute a legally binding agreement between you ("User", "you", or "your") and Landon Syroid, operating as Kindred Asterling AI Coaching ("Kindred", "we", "us", or "our"), governing your access to and use of the Kindred web application and associated services (the "Service").

By registering an account, accessing, or using the Service, you acknowledge that you have read, understood, and agree to be bound by these Terms and our Privacy Policy. If you do not agree to these Terms, you must not access or use the Service.

Age Requirement (Adults 18+ Only): You must be at least eighteen (18) years of age to create an account or use the Service. By accessing the Service, you represent and warrant that you are at least 18 years old. Minors are strictly prohibited from creating accounts or using the Service.

2. Service Description & Non-Clinical Coaching

Kindred provides automated, artificial intelligence-assisted personal coaching, daily reflection journaling, habit tracking, and progress visualization tools.

IMPORTANT NOTICE - NO PROFESSIONAL ADVICE: THE SERVICE IS AN INFORMATIONAL WELLNESS AND PERSONAL DEVELOPMENT TOOL ONLY. KINDRED IS NOT A HEALTHCARE PROVIDER, MENTAL HEALTH CLINIC, PSYCHIATRIC FACILITY, OR FINANCIAL ADVISOR. CONTENT AND OUTPUTS GENERATED BY THE SERVICE DO NOT CONSTITUTE MEDICAL, PSYCHOLOGICAL, LEGAL, OR FINANCIAL ADVICE, AND ARE NOT A SUBSTITUTE FOR EVALUATION BY A LICENSED PROFESSIONAL.

3. Subscriptions, Pricing, Lifetime Access & Refunds

A. Pricing & Billing

- **Payment Processing:** All subscription fees (e.g., \$49.99 CAD/year) and one-time fees (e.g., \$79.99 CAD Lifetime Access) are processed securely through Helcim. All fees are denominated in Canadian Dollars (CAD) unless otherwise indicated, plus applicable sales taxes (e.g., GST).
- **Annual Subscriptions:** Annual plans renew automatically at the end of each billing cycle unless cancelled prior to the renewal date.

B. 30-Day Cancellation & Refund Policy

You may cancel your initial subscription purchase within thirty (30) calendar days of purchase to receive a full refund. Refund requests should be submitted to kindred_support@kindred-asterling-ai-coaching.com.

C. Definition of "Lifetime Access"

"Lifetime Access" refers to access to the core features of the Kindred platform for the commercial operational lifespan of the software service. It does not guarantee perpetual operation in perpetuity. In the event of planned service discontinuation or platform retirement, Kindred will provide registered Lifetime Access holders with at least sixty (60) calendar days' advance written notice via email.

4. Acceptable Use Policy

You agree not to:

- Use the Service for any unlawful, harassing, defamatory, fraudulent, or harmful purpose.
- Reverse-engineer, decompile, crawl, or attempt to extract source code or underlying AI models.
- Interfere with or disrupt the integrity, security, or performance of our cloud infrastructure.
- Input confidential or personal health data belonging to third parties without lawful authorization.
- Rely upon AI-generated outputs for emergency, medical, psychiatric, or life-critical decisions.

5. Intellectual Property Rights

- Platform Ownership: Kindred, its software, branding, user interfaces, documentation, and algorithms are the proprietary property of Landon Syroid and are protected by Canadian and international intellectual property laws.
- User Inputs & Data: You retain full ownership of the text, journal entries, and personal data you input into the Service. You grant Kindred a limited, non-exclusive, royalty-free license solely to host, process, and display such data as technically necessary to operate and deliver the Service.

6. Disclaimer of Warranties

TO THE MAXIMUM EXTENT PERMITTED UNDER THE LAWS OF THE PROVINCE OF ALBERTA AND APPLICABLE CANADIAN LAW, THE SERVICE IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE. KINDRED EXPRESSLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE SERVICE WILL BE UNINTERRUPTED, ERROR-FREE, SECURE, OR ACCURATE.

7. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL KINDRED, ITS PROPRIETOR, CONTRACTORS, OR SUPPLIERS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES (INCLUDING LOSS OF PROFITS, DATA, GOODWILL, OR PERSONAL INJURY) ARISING OUT OF OR IN CONNECTION WITH YOUR USE OF OR INABILITY TO USE THE SERVICE.

OUR TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICE SHALL NOT EXCEED THE GREATER OF:

1. THE TOTAL AMOUNT ACTUALLY PAID BY YOU TO KINDRED IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY; OR
2. FIFTY CANADIAN DOLLARS (\$50.00 CAD).

NOTHING IN THESE TERMS EXCLUDES OR LIMITS ANY MANDATORY CONSUMER RIGHTS THAT CANNOT BE CONTRACTUALLY WAIVED UNDER THE ALBERTA CONSUMER PROTECTION ACT (RSA 2000, c C-26.3).

8. Dispute Resolution & Governing Law

A. Mandatory Informal Resolution

Before initiating any formal legal claim, you agree to contact us at kindred_support@kindred-asterling-ai-coaching.com and attempt in good faith to resolve the dispute informally for at least thirty (30) days.

B. Governing Law & Forum Selection

These Terms, your use of the Service, and any disputes arising hereunder shall be governed by and construed in accordance with the laws of the Province of Alberta and the federal laws of Canada applicable therein, without regard to conflict of law principles.

Subject to mandatory consumer protection laws, you irrevocably submit to the exclusive personal and subject-matter jurisdiction of the Courts of the Judicial District of Edmonton in the Province of Alberta, Canada.

9. Contact Information

For inquiries regarding these Terms:

- Legal & Support Email: kindred_support@kindred-asterling-ai-coaching.com
- Privacy Officer Email: kindredaicoach@gmail.com
- Mailing Address: 202 - 10249 119 ST NW, Edmonton, AB T5K 2Y6, Canada